

MASTER SERVICES AGREEMENT (ACME CLOUD SYSTEMS, INC. — NORTHWIND LOGISTICS LLC)

ACME CLOUD SYSTEMS INC. — NORTHWIND LOGISTICS LLC

Agreement ACME-NW-MSA-2026 Effective 2026-01-01

This Master Services Agreement (“Agreement”) is entered into as of January 1, 2026 (the “Effective Date”) between Acme Cloud Systems, Inc., a Delaware corporation (“Acme”), and Northwind Logistics LLC, a Washington limited liability company (“Customer”).

1. Structure of the Agreement

1.1 This Agreement governs Customer’s purchase and use of the Services. The specific Services, quantities, fees, and term are set out in one or more ordering documents signed by both parties (each, an “Order Form”).

1.2 Exhibit A (Service Level Agreement) is incorporated by reference.

2. Term

2.1 This Agreement begins on the Effective Date and continues for twenty-four (24) months, and renews automatically for successive twelve (12) month periods unless either party gives written notice of non-renewal at least sixty (60) days before the end of the then-current period.

3. Fees and Payment

3.1 Customer shall pay the fees stated in the applicable Order Form (“Fees”).

3.2 Acme shall invoice monthly in arrears. Invoices are due net thirty (30) days from the invoice date.

3.3 Undisputed amounts not paid when due accrue interest at one and one-half percent (1.5%) per month, or the maximum rate permitted by law, whichever is lower.

3.4 Customer may withhold payment of a disputed invoice amount if Customer notifies Acme of the dispute in writing within fifteen (15) days of the invoice date.

4. Termination

4.1 Either party may terminate this Agreement for convenience on thirty (30) days' prior written notice, effective at the end of the then-current billing month.

4.2 Either party may terminate this Agreement for cause if the other party materially breaches this Agreement and fails to cure the breach within thirty (30) days after written notice describing the breach in reasonable detail.

4.3 Acme may suspend the Services immediately if Customer's account is more than forty-five (45) days past due and Acme has given at least ten (10) days' prior written notice of the delinquency.

5. Customer Data

5.1 Customer retains all right, title, and interest in Customer Data. Processing of personal data is governed by the Data Processing Addendum.

5.2 On termination, Acme shall make Customer Data available for export for thirty (30) days and shall delete it within ninety (90) days after the export window closes.

9. Limitation of Liability

9.1 NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR LOST REVENUE, WHETHER OR NOT ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9.2 Except as provided in Sections 9.3 and 9.4, each party's aggregate liability arising out of or related to this Agreement shall not exceed the total Fees paid or payable by Customer in the twelve (12) months preceding the first event giving rise to the claim.

9.3 For Excluded Claims, each party's aggregate liability shall not exceed two hundred percent (200%) of the total Fees paid or payable by Customer in the twelve (12) months preceding the first event giving rise to the claim. "Excluded Claims" means claims arising from (a) breach of Section 11 (Confidentiality) and (b) a party's indemnity obligations for third-party intellectual property infringement under Section 10.

9.4 The limitations in Sections 9.2 and 9.3 do not apply to (a) a party's gross negligence or willful misconduct, (b) Customer's obligation to pay Fees, or (c) either party's liability for death or personal injury caused by its negligence. Liability for those matters is unlimited.

10. Indemnity

10.1 Acme shall defend Customer against any third-party claim alleging that the Services infringe that third party's intellectual property rights, and shall pay damages finally awarded, provided Customer notifies Acme in writing within thirty (30) days of becoming aware of the claim and gives Acme sole control of the defense.

11. Confidentiality

11.1 Each party shall protect the other's Confidential Information using at least the degree of care it uses for its own confidential information of like importance, and no less than reasonable care.

11.2 The obligations in Section 11.1 continue for three (3) years after the date of disclosure, except that obligations with respect to information that qualifies as a trade secret continue for as long as the information remains a trade secret.

11.3 "Confidential Information" means information disclosed by a party that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure.

12. Representations and Warranties

12.1 Acme warrants that it will perform the Services in a professional and workmanlike manner consistent with generally accepted industry standards, and that it will use commercially reasonable efforts to correct any material non-conformity reported by Customer.

12.2 EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, THE SERVICES ARE PROVIDED "AS IS" AND ACME DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

13. Governing Law and Venue

13.1 This Agreement is governed by the laws of the State of California, excluding its conflict-of-laws rules. The parties submit to the exclusive jurisdiction of the state and federal courts located in San Francisco County, California.

14. General

14.1 Neither party may assign this Agreement without the other party's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.

14.2 This Agreement, together with its exhibits and all Order Forms, is the entire agreement between the parties and supersedes all prior proposals and understandings.

14.3 **Order of Precedence.** In the event of a conflict between this Agreement and an Order Form, the Order Form controls, but solely with respect to the subject matter expressly addressed in that Order Form. In the event of a conflict between this Agreement and an exhibit, this Agreement controls.

14.4 If any provision of this Agreement is held unenforceable, that provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force.

15. Force Majeure

15.1 Neither party is liable for any delay or failure to perform (other than a failure to pay) caused by an event beyond its reasonable control, including acts of God, war, terrorism, civil unrest, epidemic, labor dispute, or failure of a public utility or public telecommunications network, provided the affected party gives prompt notice and uses commercially reasonable efforts to resume performance.

SIGNATURE · NAME · TITLE · DATE

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